M/S. S.R.M. Power Private Ltd vs Mangalore Electricity Supply Co. Ltd. & ... on 14 March, 2012

COURT - I
Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)
I.A. No. 88 of 2012 in
DFR No. 576 of 2011

Dated: 14th March, 2012

Present : Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member

M/s. S.R.M. Power Private Ltd. ...Appellant (s)

Versus

Mangalore Electricity Supply Co. Ltd. & Anr. ...Respondent(s)

Counsel for the Appellant(s) : Mr. Prabhuling K. Navadgi

ORDER

I.A. No. 88 of 2012 (Condone delay in re-filing) This is an Application to condone the delay of 255 days in re- filing the Appeal. We are not at all satisfied with the reasons given in the Petition requesting this Tribunal to condone the exorbitant delay of 255 days.

As a matter of fact, the Statute provides that the Appeal after Admission has to be disposed of by this Tribunal within 180 days. But this is a case where lack of diligence has been shown throughout by the person concerned in not re-filing the appeal in time, thereby caused inordinate delay of 255 days. Therefore, we do not find any reason to entertain the Application.

Accordingly, the Application is dismissed. Consequently, the Appeal is also dismissed.

(Rakesh Nath) (Justice M. Karpaga Vinayagam)
Technical Member Chairperson

Ts/sm